

COMMONWEALTH OF KENTUCKY
MUHLENBERG DISTRICT COURT
CASE NO. 24-CR-001276-002

COMMONWEALTH OF KENTUCKY
PLAINTIFF

v.

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD
DEFENDANT

MOTION TO VOID CONVICTION AND SEAL RECORDS (KRS 218A.275)

The Defendant, Maria-Alejandra O'Shaughnessy-Whitfield, moves the Court under KRS 218A.275 to void the conviction in this case and to seal all records pertaining to it.

GROUND

The Defendant has successfully completed the terms of treatment, probation, or sentence in this case. That is the ground the Court's own order form states, and it is the ground on which this motion is made.

DATE OF COMPLETION, 2.....
(the Defendant writes the date of completion here, and on the tendered order, before filing)

RELIEF REQUESTED

The Defendant asks the Court to enter the tendered order on Form AOC-334, ORDER VOIDING CONVICTION AND SEALING RECORDS, which is filed with this motion. That order voids the conviction and directs that all records pertaining to it in the custody of the court, and any records in the custody of any other agency or official including law enforcement records, be sealed.

The tendered order lists the agencies to be ordered to seal their records. The Defendant completes that list before filing; this motion does not name an agency the Defendant has not identified.

WHAT THIS MOTION DOES NOT DO

This motion makes no argument beyond the ground stated above. It is filed with the Office of the Circuit Court Clerk, in the original criminal case in the county of conviction, and no filing fee is charged for it. It states no deadline and no hearing date; neither is established by the order form, and the circuit court clerk is who to ask about each of them.

Respectfully submitted,

SIGNATURE OF DEFENDANT

DATE

PRINTED NAME

ADDRESS

TELEPHONE

The Defendant signs and dates this motion personally. Nothing on this page is signed or dated for the Defendant.

Route: obligation:track-only:KY:ky_void_seal_controlled_substance

AOC-334 Doc. Code: OVSR
Rev. 1-22
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Commonwealth of Kentucky
Court of Justice www.kycourts.gov
KRS 218A.275, KRS 218A.276



**ORDER VOIDING CONVICTION
AND SEALING RECORDS**

Case No. 24-CR-001276-002
Court District
County Muhlenberg
Division _____

COMMONWEALTH OF KENTUCKY

PLAINTIFF

v.

Maria-Alejandra O'Shaughnessy-Whitfield

DEFENDANT

Defendant's Birthdate: 1968-12-31 Defendant's SSN: _____ Violation/Arrest Date: _____

CHARGE: _____

CHARGE: _____

CHARGE: _____

CHARGE: _____

CHARGE: _____

CHARGE: _____

The above-named Defendant has successfully completed the terms of treatment, probation, or sentence on _____, 2_____. Pursuant to KRS 218A.275 and KRS 218A.276, Defendant's conviction is hereby void; and all records pertaining thereto that are in custody of the court and any records in the custody of any other agency or official, including law enforcement records, shall be sealed. If this Order results in the partial sealing of the above-styled case, the clerk is hereby directed to prepare AOC-336 for the Court's review and approval.

The **Kentucky State Police and other following agencies listed below are hereby ordered to seal** any records in their custody regarding the above-named Defendant and above-listed charge(s): _____

So ORDERED this _____ day of _____, 2_____.

Judge

CERTIFICATION

_____, an above-named agency ordered to seal records in our custody certifies: ☐ the agency has in its custody no records relating to the Defendant/matter: OR ☐ the agency has completed the sealing process ordered by this Court.

Date: _____, 2_____

Agency Records Custodian: _____

Distribution: Original - Court File

Certified Copies: Defendant/Attorney; Kentucky State Police; Named Agencies

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DEFENDANT

CERTIFICATE OF SERVICE

This page is a certificate of service. It is completed and signed at the time a copy is actually delivered or mailed, and not before.

WHO MUST BE SERVED: By mail or hand delivery on the county or Commonwealth's attorney that prosecuted the case. That is the record this build reads, and it is not the order form's. What the record does not give is that office's current name and address for the county named above, so the line below stays blank and the Defendant writes it. Ask the circuit court clerk for that address; nothing on this page is written for the Defendant.

I certify that on the date written below I served a true copy of the foregoing Motion and the tendered Order on:

NAME AND ADDRESS OF EACH PERSON SERVED

.....
.....
.....

METHOD OF SERVICE

(hand delivery, first-class mail, or whatever method the clerk tells you this filing requires)

DATE OF SERVICE

SIGNATURE OF DEFENDANT

Nothing on this page is prefilled. A certificate of service is a statement about something a person did, and a date or a signature written before the copy goes out would be false.

Route: obligation:track-only:KY:ky_void_seal_controlled_substance